

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Bernardo Gutierrez	Team: Team # 5	CCRB Case #: 201012067	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 08/07/2010 10:30 PM	Location of Incident: Vicinity of East 170th Street and Walton Avenue.	18 Mo. SOL 2/7/2012	Precinct: 44
Date/Time CV Reported Mon, 08/09/2010 11:57 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/09/2010 11:57 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Alexis Dejesus	01421	946903	BX IRT
2. POF Nivia Fontanez	21868	946999	BX IRT

Officer(s)	Allegation	Investigator Recommendation
A . POM Alexis Dejesus	Abuse: PO Alexis Dejesus stopped the car in which § 87(2)(b) and individuals were occupants.	A . Complainant Uncooperative
B . POF Nivia Fontanez	Abuse: PO Nivia Fontanez stopped the car in which § 87(2)(b) and individuals were occupants.	B . Complainant Uncooperative
C . POM Alexis Dejesus	Discourtesy: PO Alexis Dejesus spoke obscenely and/or rudely to § 87(2)(b)	C . Complainant Uncooperative
D . POM Alexis Dejesus	Abuse: PO Alexis Dejesus searched § 87(2)(b) and individuals.	D . Complainant Uncooperative
E . POM Alexis Dejesus	Force: PO Alexis Dejesus held an asp against § 87(2)(b)'s neck.	E . Complainant Uncooperative
F . POF Nivia Fontanez	Discourtesy: PO Nivia Fontanez spoke obscenely and/or rudely to § 87(2)(b)	F . Complainant Uncooperative

Case Summary

On August 7, 2010, in between the hours of 10:00 p.m. and 11:00 p.m., § 87(2)(b) and three of his cousins, whose names are not known to the CCRB, were in a taxi en route to a hospital to seek medical attention for one of the cousins, § 87(2)(b). As the taxi was on the corner of 170th Street and Walton Avenue in the Bronx, Officer Alexis Dejesus and Officer Nivia Fontanez pulled the taxi over (**Allegation A and Allegation B**). PO Dejesus asked § 87(2)(b) and his cousins to exit the taxi. When § 87(2)(b) tried to explain that the group was going to the hospital, PO Dejesus responded “When I tell you to keep your fucking mouth shut, then keep your mouth shut and stay in the car.” (**Allegation C**). § 87(2)(b) asked PO Dejesus why he was speaking to him in this manner and he responded “Just keep your fucking mouth shut, do you want to get in big trouble?” (**Allegation C**). PO Dejesus searched all three of § 87(2)(b)'s cousins including § 87(2)(b) (**Allegation D**). § 87(2)(b) began to cry and asked PO Fontanez for him to be allowed to go to the hospital. At this point, PO Dejesus placed an asp against § 87(2)(b)'s neck (**Allegation E**). PO Fontanez approached § 87(2)(b) and asked him for ID. When § 87(2)(b) asked what was going on, PO Fontanez responded “Just give me your fucking ID.” (**Allegation F**). § 87(2)(b) was issued a summons § 87(2)(b). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

On § 87(2)(b), § 87(2)(b) called CCRB to file this complaint on the call processing system. § 87(2)(g)

§ 87(2)(g)

On August 17, 2010, a telephone statement was obtained from § 87(2)(b) by Team 4 regarding the August 12th complaint and FADO allegations were mentioned. On August 19, 2010, case number § 87(2)(b) was forwarded to Team 5, which had taken the original complaint. § 87(2)(g)

On September 3, 2010, § 87(2)(b) was contacted and mediation was pitched and declined. An appointment for a sworn statement was scheduled for September 9, 2010. On September 9, 2010, § 87(2)(b) missed his appointment without calling to cancel or reschedule and he was sent a missed appointment letter. On September 10, 2010, § 87(2)(b) was rescheduled to provide a sworn statement on September 17, 2010. On September 17, 2010, § 87(2)(b) missed his appointment without calling to cancel or reschedule. No contact information was obtained regarding § 87(2)(b) or any of § 87(2)(b)'s cousins. On September 21, 2010, a Lexis-Nexis search was performed for the name § 87(2)(b) in the Bronx yielding several results. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **allegation A, allegation B, allegation C, allegation D, allegation E and allegation F** be closed as complainant uncooperative.

Team: 5

Investigator: _____	Bernardo Gutierrez	10/5/2010
Signature	Print	Date

Supervisor: _____

	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date